

**3. CU0001697 County of Nevada vs. Wild Earth Property LLC, et al.**

Receiver's March 20, 2026, motion for discharge of receiver and exoneration of surety is granted.

A receiver is an independent third party, a "hand" or "agent" of the court that acts only upon the direction and authority of the appointing court. *Takeba v. Superior Court* (1919) 43 Cal. App. 469, 475. All receiver actions undertaken are subject to final ratification by the court, and the discharge hearing is the appropriate venue for a court to utilize its discretion on all receivership actions. *Hanno v. Superior Court* (1939) 30 Cal.App.2d 639, 641. Once the work of a receivership is finished, the receiver is required to submit a motion or stipulation for discharge, and a summary of all accounts, payments, and debts of the receivership. See California Rules of Court, Rules 3.1183 and 3.1184. The order discharging the receiver is necessary to fully complete the receivership and end the court's involvement. *Jun v. Myers* (2001) 88 Cal.App.4th 117, 123-24. The discharge does not happen automatically and must be requested. *Scoville v. De Bretteville* (1942) 50 Cal.App.2d 622, 632; *Hanno*, 30 Cal.App.2d at 641. The discharge order settling the account is the final judgment in a receivership proceeding. *Aviation Brake Systems, Ltd. v. Voorhis* (1982) 133 Cal.App.3d 230, 233. Because all issues concerning a receiver's actions are fully adjudicated as part of the final accounting, the discharge order operates as *res judicata* to any claims of liability against the receiver in his official capacity. *Id.* at 234; *Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership* (2017) 8 Cal.App.5th 910, 926.

The Court has reviewed the instant motion. The Court appointed the receiver to bring the subject property into compliance with all applicable state and local laws and sell the property, which he has now completed. The Court has also previously approved the monthly accountings submitted by the receiver. The Court is satisfied that there is good cause to discharge the receiver at this time and exonerate the surety as requested.

Accordingly, the receiver's motion is granted in its entirety. The Court appreciates the dedicated service of the receiver in this matter.

**4. CU0001902 Travis Gould vs. PHH Mortgage Corporation, et al.**

No appearances are required. A party reserved a motion hearing date; however, no motion has been filed. Moreover, a notice of settlement has been filed. The hearing today is withdrawn from calendar. The case management conference is confirmed for June 1, 2026, 09:00.

**5. CU0002002 Cynthia Repella vs. Tania Blair, et al.**

Appearances are required. Plaintiff filed a notice of a bankruptcy stay on September 19, 2025. The Court must be advised whether the stay remains effective or otherwise.

Assuming the stay has been lifted, Plaintiff filed a January 26, 2026, motion for leave to file an amended complaint. There is no proof of service of the motion on Defendant and there is no response from Defendant. That said, Defendant indicates in her April 1, 2026 case management conference statement that she intends to file a demurrer *if* the motion is granted (suggesting she had some notice of the motion). The parties shall verify whether Defendant has been served with